

1 **SENATE FLOOR VERSION**

2 March 5, 2025

3 COMMITTEE SUBSTITUTE
4 FOR
5 SENATE JOINT
6 RESOLUTION NO. 6

By: Paxton and Guthrie

7 A Joint Resolution directing the Secretary of State
8 to refer to the people for their approval or
9 rejection the repeal of Section 3 of Article VII-B of
10 the Oklahoma Constitution, which relates to the
11 Judicial Nominating Commission, and the proposed
12 amendment to Sections 1, 2, and 4 of Article VII-B of
13 the Oklahoma Constitution; modifying applicability of
14 certain provisions; modifying definition; adding
15 requirement for holding certain office; prohibiting
16 decrease of certain compensation; modifying certain
17 appointment procedure; requiring Senate confirmation
18 of certain judicial appointments; updating language;
19 making language gender neutral; providing ballot
20 title; and directing filing.

21 BE IT RESOLVED BY THE SENATE AND THE HOUSE OF REPRESENTATIVES OF THE
22 1ST SESSION OF THE 60TH OKLAHOMA LEGISLATURE:

23 SECTION 1. The Secretary of State shall refer to the people for
24 their approval or rejection, as and in the manner provided by law,
25 the repeal of Section 3 of Article VII-B and the following proposed
26 amendment to Sections 1, 2, and 4 of Article VII-B of the Oklahoma
27 Constitution to read as follows:

28 Section 1. ~~-(a)—The~~ A. On or after the effective date of this
29 resolution, the provisions of this Article shall govern the

1 selection and tenure of all Justices of the Supreme Court and Judges
2 of the Court of Criminal Appeals and the Court of Civil Appeals of
3 the State of Oklahoma, to which the provisions hereof may be
4 extended as hereinafter provided, other provisions of the
5 Constitution or statutes of the State of Oklahoma to the contrary
6 notwithstanding, and the provisions of Article VII as proposed by
7 House Joint Resolution No. 508 of the First Session of the Thirty-
8 first Oklahoma Legislature to the contrary notwithstanding.

9 ~~(b)~~ B. As used in this ~~Section~~ Article, "Judicial Office" means
10 the offices of Justice of the Supreme Court and Judges of the Court
11 of Criminal Appeals and Court of Civil Appeals and "Judicial
12 Officer" means a Justice or Judge of each such court, excluding
13 retired or supernumerary Justices or Judges.

14 Section 2. A. At the general election next before his or her
15 term expires, any Judicial Officer may seek retention in office by
16 filing with the Secretary of State, not less than sixty (60) days
17 before the date of such election, a declaration of candidacy to
18 succeed himself or herself. Thereupon, at such election, there
19 shall be submitted to the qualified electors of ~~the State~~ this
20 state, on a separate ballot, without party designation, this
21 question:

22 "Shall (Here insert name of Justice or Judge) of (Here
23 insert the title of the court) be retained in Office?"

24 ☐ YES

1 ~~within sixty (60) days the Chief Justice of the Supreme Court shall~~
2 ~~appoint one (1) of the nominees, the appointment to be certified by~~
3 ~~the Secretary of State~~ nominate and, with the advice and consent of
4 the Senate, shall appoint a Judicial Officer. If the Senate is not
5 in session when a nomination is made, the Governor may call the
6 Senate into special session to advise and consent on any such
7 nomination.

8 SECTION 2. The Ballot Title for the proposed Constitutional
9 amendment as set forth in SECTION 1 of this resolution shall be in
10 the following form:

11 BALLOT TITLE

12 Legislative Referendum No. _____ State Question No. _____

13 THE GIST OF THE PROPOSITION IS AS FOLLOWS:

14 This measure would amend Article 7-B of the Oklahoma
15 Constitution. The measure would amend Sections 1, 2, and 4 of
16 Article 7-B to establish a new process for appointing Supreme
17 Court Justices and Judges of the Court of Criminal Appeals and
18 Court of Civil Appeals to reflect the process established by the
19 United States Constitution. Judicial Officers appointed or
20 retained after the effective date of this resolution will serve
21 during good behavior. The Governor will nominate new Judicial
22 Officers, subject to confirmation by the Senate. The measure
23 would repeal Section 3 of Article 7-B, which established the
24 Judicial Nominating Commission.

1 SHALL THE PROPOSAL BE APPROVED?

2 FOR THE PROPOSAL — YES _____

3 AGAINST THE PROPOSAL — NO _____

4 SECTION 3. The President Pro Tempore of the Senate shall,
5 immediately after the passage of this resolution, prepare and file
6 one copy thereof, including the Ballot Title set forth in SECTION 2
7 hereof, with the Secretary of State and one copy with the Attorney
8 General.

9 COMMITTEE REPORT BY: COMMITTEE ON RULES
10 March 5, 2025 - DO PASS AS AMENDED BY CS
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